**BRENDAN NGWA NFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

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| **BRENDAN NGWA NFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**DIANA CANDELARIA, in her individual capacity; STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,**<br><br>Defendants. | Case No. 3:26-cv-08272-LJC<br><br>**[PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 11) PURSUANT TO FED. R. CIV. P. 12(f)**<br><br>Date: November 12, 2026<br>Time: 1:30 p.m.<br>Courtroom: Videoconference (Zoom)<br>Judge: Hon. Lisa J. Cisneros<br><br>Action Filed: August 10, 2026<br>Operative FAC: August 17, 2026 |

## [PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION TO STRIKE DEFENDANTS' ANSWER (ECF NO. 11)

Plaintiff Brendan Ngwa Nforbi's Motion to Strike Defendants' Answer (ECF No. 11) Pursuant to Federal Rule of Civil Procedure 12(f) is before the Court.

Having considered Plaintiff's Motion, the Memorandum of Points and Authorities, the papers on file, and any opposition and reply, and good cause appearing, THE COURT ORDERS AS FOLLOWS:

1. Plaintiff's Motion to Strike is GRANTED.

2. Defendants Diana Candelaria and Steve Gordon's Answer (ECF No. 11), filed on September 4, 2026, is hereby STRICKEN in its entirety pursuant to Federal Rule of Civil Procedure 12(f), on the ground that it responds solely to Plaintiff's superseded original Complaint (Dkt. 1) rather than Plaintiff's operative First Amended Complaint (Dkt. 6), rendering it a procedural nullity, redundant, immaterial, and impertinent.

3. Defendants shall file and serve an answer addressing the operative First Amended Complaint (Dkt. 6) within fourteen (14) days of the date of this Order.

4. Any answer filed by Defendants shall strictly conform to Federal Rule of Civil Procedure 8(b), admitting or denying each allegation or stating lack of knowledge or information sufficient to form a belief, and shall not assert evasive boilerplate denials stating that 'the law speaks for itself.'

IT IS SO ORDERED.

Dated: _____, 2026

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HON. LISA J. CISNEROS

United States Magistrate Judge